

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: img on 9-16-26
(Judge's initials) (Date)

(20)

Tentative Ruling

Re: ***Moralez v. Fresno Community Hospital and Medical Center,
et al.***

Superior Court Case No. 23CECG05231

Hearing Date: September 17, 2026 (Dept. 502)

Motion: Withdraw as Counsel

Tentative Ruling:

To deny.

Explanation:

The moving papers are ambiguous as to whom counsel moves to withdraw from representing. The client is identified as Kaelyn Moralez, the only party known to the court to be represented by Dawn Smith of Smith Clinesmith, LLP.

Counsel states that they must withdraw because while plaintiff agreed to a settlement, Thomas Sevilla did not, creating a conflict of interest. While Mr. Sevilla filed a declaration apparently indicating that he believes he is represented by Smith Clinesmith, he is in pro per as far as the court is aware. Smith Clinesmith is not identified as counsel for Mr. Sevilla. It is unclear why Mr. Sevilla not agreeing to a settlement should create a conflict of interest precluding representation of Ms. Moralez. Is Smith Clinesmith moving to withdraw from representing Mr. Sevilla or Ms. Moralez?

If it is Ms. Morales that counsel seeks to withdraw from representing, if the client is served by mail, her address must be verified within 30 days of filing the motion to be relieved. (Cal. Rules of Court, rule 3.162(d)(1).) Counsel's declaration states that the client's address (presumably Ms. Morales) was verified by emailing tomesevilla@gmail.com, which the court presumes to be the email address for Mr. Sevilla. If counsel is seeking to withdraw from representation of Ms. Morales, her mailing address should be confirmed with her, not someone else.

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